

ALITO, J., dissenting

Constitutional claims. Finally, despite the important differences between the Fourteenth Amendment and Title VII, the Court’s decision may exert a gravitational pull in constitutional cases. Under our precedents, the Equal Protection Clause prohibits sex-based discrimination unless a “heightened” standard of review is met. *Sessions v. Morales-Santana*, 582 U. S. 47, 58 (2017); *United States v. Virginia*, 518 U. S. 515, 532–534 (1996). By equating discrimination because of sexual orientation or gender identity with discrimination because of sex, the Court’s decision will be cited as a ground for subjecting all three forms of discrimination to the same exacting standard of review.

Under this logic, today’s decision may have effects that extend well beyond the domain of federal antidiscrimination statutes. This potential is illustrated by pending and recent lower court cases in which transgender individuals have challenged a variety of federal, state, and local laws and policies on constitutional grounds. See, *e.g.*, Complaint in *Hecox*, No. 1: 20–CV–00184 (state law prohibiting transgender students from competing in school sports in accordance with their gender identity); Second Amended Complaint in *Karnoski v. Trump*, No. 2:17–cv–01297 (WD Wash., July 31, 2019) (military’s ban on transgender members); *Kadel v. Folwell*, 446 F. Supp. 3d 1, 18 (MDNC 2020) (state health plan’s exclusion of coverage for sex reassignment procedures); Complaint in *Gore v. Lee*, No. 3:19–cv–00328 (MD Tenn., Mar. 3, 2020) (change of gender on birth certificates); Brief for Appellee in *Grimm v. Gloucester Cty. School Bd.*, No. 19–1952 (CA4, Nov. 18, 2019) (transgender student forced to use gender-neutral bathrooms at school); Complaint in *Corbitt v. Taylor*, No. 2:18–cv–00091 (MD Ala., July 25, 2018) (change of gender on driver’s licenses); *Whitaker*, 858 F. 3d, at 1054 (school policy requiring students to use the bathroom that corresponds to the sex on birth certificate); *Keohane v. Florida Dept. of Corrections Secretary*, 952 F. 3d 1257, 1262–1265 (CA11 2020) (transgender prisoner denied hormone therapy

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and ability to dress and groom as a female); *Edmo v. Corizon, Inc.*, 935 F. 3d 757, 767 (CA9 2019) (transgender prisoner requested sex reassignment surgery); cf. *Glenn v. Brumby*, 663 F. 3d 1312, 1320 (CA11 2011) (transgender individual fired for gender non-conformity).

Although the Court does not want to think about the consequences of its decision, we will not be able to avoid those issues for long. The entire Federal Judiciary will be mired for years in disputes about the reach of the Court's reasoning.

* * *

The updating desire to which the Court succumbs no doubt arises from humane and generous impulses. Today, many Americans know individuals who are gay, lesbian, or transgender and want them to be treated with the dignity, consideration, and fairness that everyone deserves. But the authority of this Court is limited to saying what the law *is*.

The Court itself recognizes this:

“The place to make new legislation . . . lies in Congress. When it comes to statutory interpretation, our role is limited to applying the law’s demands as faithfully as we can in the cases that come before us.” *Ante*, at 680–681.

It is easy to utter such words. If only the Court would live by them.

I respectfully dissent.

APPENDIXES

A

Webster’s New International Dictionary 2296 (2d ed. 1953):

sex (sěks), *n.* [F. *sexe*, fr. L. *sexus*; prob. orig., division, and akin to L. *secare* to cut. See SECTION.] **1.** One of the two divisions of organisms formed on the distinction of male and female; males or females collectively.

2. The sum of the peculiarities of structure and function that distinguish a male from a female organism; the character of being

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male or female, or of pertaining to the distinctive function of the male or female in reproduction. *Conjugation*, or *fertilization* (union of germplasm of two individuals), a process evidently of great but not readily explainable importance in the perpetuation of most organisms, seems to be the function of differentiation of sex, which occurs in nearly all organisms at least at some stage in their life history. Sex is manifested in the conjugating cells by the larger size, abundant food material, and immobility of the female gamete (*egg*, *egg cell*, or *ovum*), and the small size and the locomotive power of the male gamete (*spermatozoon* or *spermatozoid*), and in the adult organisms often by many structural, physiological, and (in higher forms) psychological characters, aside from the necessary modification of the reproductive apparatus. Cf. HERMAPHRODITE, 1. In botany the term *sex* is often extended to the distinguishing peculiarities of staminate and pistillate flowers, and hence in dioecious plants to the individuals bearing them.

In many animals and plants the body and germ cells have been shown to contain one or more chromosomes of a special kind (called *sex chromosomes*; *idiochromosomes*; *accessory chromosomes*) in addition to the ordinary paired autosomes. These special chromosomes serve to determine sex. In the simplest case, the male germ cells are of two types, one with and one without a single extra chromosome (*X chromosome*, or *monosome*). The egg cells in this case all possess an *X chromosome*, and on fertilization by the two types of sperm, male and female zygotes result, of respective constitution *X*, and *XX*. In many other animals and plants (probably including man) the male organism produces two types of gametes, one possessing an *X chromosome*, the other a *Y chromosome*, these being visibly different members of a pair of chromosomes present in the diploid state. In this case also, the female organism is *XX*, the eggs *X*, and the zygotes respectively male (*XY*) and female (*XX*). In another type of sex determination, as in certain moths and possibly in the fowl, the female produces two kinds of eggs, the male only one kind of sperm. Each type of egg contains one member of a pair of differentiated chromosomes, called respectively *Z chromosomes* and *W chromosomes*, while all the sperm cells contain a *Z chromosome*. In fertilization, union of a *Z* with a

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W gives rise to a female, while union of two *Z* chromosomes produces a male. Cf. SECONDARY SEX CHARACTER.

3. a The sphere of behavior dominated by the relations between male and female. **b** *Psychoanalysis*. By extension, the whole sphere of behavior related even indirectly to the sexual functions and embracing all affectionate and pleasure-seeking conduct.

4. Phenomena of sexual instincts and their manifestations.

5. Sect;—a confused use.

Syn.—SEX, GENDER. SEX refers to physiological distinctions; GENDER, to distinctions in grammar.

—**the sex**. The female sex; women, in general.

sex, *adj.* Based on or appealing to sex.

sex, *v. t.* To determine the sex of, as skeletal remains.

Webster's Third New International Dictionary 2081 (1966):

¹**sex** \ˈseks\ *n* —*ES often attrib* [ME, fr. L *sexus*; prob. akin to L *secare* to cut—more at SAW] **1:** one of the two divisions of organic esp. human beings respectively designated male or female <a member of the opposite ~> **2:** the sum of the morphological, physiological, and behavioral peculiarities of living beings that subserves biparental reproduction with its concomitant genetic segregation and recombination which underlie most evolutionary change, that in its typical dichotomous occurrence is usu. genetically controlled and associated with special sex chromosomes, and that is typically manifested as maleness and femaleness with one or the other of these being present in most higher animals though both may occur in the same individual in many plants and some invertebrates and though no such distinction can be made in many lower forms (as some fungi, protozoans, and possibly bacteria and viruses) either because males and females are replaced by mating types or because the participants in sexual reproduction are indistinguishable—compare HETEROTHALLIC, HOMOTHALLIC; FERTILIZATION, MEIOSIS, MENDEL'S LAW; FREEMARTIN, HERMAPHRODITE, INTERSEX **3:** the sphere of interpersonal behavior esp. between male and female most directly associated with, leading up to, substituting for, or

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resulting from genital union <agree that the Christian's attitude toward ~ should not be considered apart from love, marriage, family—M. M. Forney> **4:** the phenomena of sexual instincts and their manifestations <with his customary combination of philosophy, insight, good will toward the world, and entertaining interest in ~—Allen Drury> <studying and assembling what modern scientists have discovered about ~—*Time*>; *specif:* SEXUAL INTERCOURSE <an old law imposing death for ~ outside marriage—William Empson>

²**sex** \ˈ vt -ED/-ING/-ES **1:** to determine the sex of (an organic being) <it is difficult to ~ the animals at a distance—E. A. Hooton>—compare AUTOSEXING **2 a:** to increase the sexual appeal or attraction of—usu. used with *up* <titles must be ~ed up to attract 56 million customers—*Time*> **b:** to arouse the sexual instincts or desires of—usu. used with *up* <watching you ~ing up that bar kitten—Oakley Hall>

9 Oxford English Dictionary 577–578 (1933):

Sex (seks), *sb.* Also 6–7 *sexe*, (6 *seex*, 7 *pl. sexe*, 8 *poss. sexe's*). [ad. L. *sexus* (*u*-stem), whence also F. *sexe* (12th c.), Sp., Pg. *sexo*, It. *sessò*. Latin had also a form *secus* neut. (indeclinable).]

1. Either of the two divisions of organic beings distinguished as male and female respectively; the males or the females (of a species, etc., esp. of the human race) viewed collectively.

1382 WYCLIF *Gen.* vi. 19 Of alle thingis hauynge sowle of ony flehs, two thow shalt brynge into the ark, that maal sex and femaal lyuen with thee. **1532** MORE *Confut. Tindale* II. 152, I had as leue he bare them both a bare cheryte, as wyth the frayle feminyne sexe fall to far in loue. **1559** ALYMER *Harborowe* E 4 b, Neither of them debarred the heires female .. as though it had ben .. vnnatural for that sexe to gouern. **1576** GASCOIGNE *Philomene* xcvi, I speake against my sex. *a* **1586** SIDNEY *Arcadia* II. (1912) 158 The sexe of womankind of all other is most bound to have regardfull eie to mens judgements. **1600** NASHE *Summer's Last Will* F 3 b, A woman they imagine her to be, Because that sexe keepes nothing close they heare. **1615** CROOKE *Body of Man* 274 If wee respect the .. conformation of both the Sexes, the Male is sooner perfected .. in the wombe. **1634** SIR T. HERBERT *Trav.* 19 Both sexe goe naked. **1667**

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MILTON *P. L.* IX, 822 To add what wants In Femal Sex. **1671**—*Samson* 774 It was a weakness In me, but incident to all our sex. **1679** DRYDEN *Troilus & Cr.* I. ii, A strange dissembling sex we women are. **1711** ADDISON *Spect.* No. 10 ¶ 6 Their Amusements .. are more adapted to the Sex than to the Species. **1730** SWIFT *Let. to Mrs. Whiteway* 28 Dec., You have neither the scrawl nor the spelling of your sex. **1742** GRAY *Propertius* II. 73 She .. Condemns her fickle Sexe's fond Mistake. **1763** G. WILLIAMS in Jesse *Selwyn & Contemp.* (1843) I. 265 It would astonish you to see the mixture of sexes at this place. **1780** BENTHAM *Princ. Legisl.* VI. §35 The sensibility of the female sex appears .. to be greater than that of the male. **1814** SCOTT *Ld. of Isles* VI. iii, Her sex's dress regain'd. **1836** THIRLWALL *Greece* xi. II. 51 Solon also made regulations for the government of the other sex. **1846** *Ecclesiologist* Feb. 41 The propriety and necessity of dividing the sexes during the publick offices of the Church. **1848** THACKERAY *Van. Fair* xxv, She was by no means so far superior to her sex as to be above jealousy. **1865** DICKENS *Mut. Fr.* II. i, It was a school for both sexes. **1886** MABEL COLLINS *Prettiest Woman* ii, Zadviga had not yet given any serious attention to the other sex.

b. collect. followed by plural verb. *rare.*

1768 GOLDSM. *Good. n. Man* IV. (Globe) 632/2 Our sex are like poor tradesmen. **1839** MALCOM *Trav.* (1840) 40/I Neither sex tattoo any part of their bodies.

c. The fair(er), gentle(r), soft(er), weak(er) sex; the devout sex; the second sex; † the woman sex: the female sex, women. *The † better, sterner sex:* the male sex, men.

[**1583** STUBBES *Anat. Abus.* E vij b, Ye magnificency & liberalitie of that gentle sex. **1613** PURCHAS *Pilgrimage* (1614) 38 Strong Sampson and wise Solomon are witnesses, that the strong men are slaine by this weaker sexe.]

1641 BROME *Jovial Crew* III. (1652) H 4, I am bound by a strong vow to kisse all of the woman sex I meet this morning. **1648** J. BEAUMONT *Psyche* XIV. I, The softer sex, attending Him And his still-growing woes. **1665** SIR T. HERBERT *Trav.* (1677) 22 Whiles the better sex seek prey abroad, the women (therein like themselves) keep home and spin. **1665** BOYLE *Occas. Reft.* v. ix. 176 Persons of the fairer Sex. a **1700** EVELYN *Diary* 12 Nov. an. 1644, The Pillar .. at which the devout sex are always rubbing their chaplets. **1701** STANHOPE *St. Aug. Medit.* I. xxxv. (1704) 82, I may .. not suffer my self to be outdone by the weaker Sex. **1732** [see FAIR a. I b]. **1753** HOGARTH *Anal. Beauty* x. 65 An elegant degree of plumpness peculiar to the skin of the softer sex. **1820** BYRON *Juan* IV. cviii, Benign Ceruleans of the second sex! Who advertise new poems by your looks. *Murray's Hand-bk. N. Germ.* 430 It is much frequented by the fair sex. **1894** C. D. TYLER in *Geog. Jrnl.* III. 479 They are beardless, and usually wear a shock of unkempt hair, which is somewhat finer in the gentler sex.

¶d. Used occas. with extended notion. The third sex: eunuchs. Also *sarcastically* (see quot. 1873).

1820 BYRON *Juan* IV. lxxxvi, From all the Pope makes yearly, 'twould perplex To find three perfect pipes of the third sex. *Ibid.* V. xxvi, A black old neutral personage Of the third sex

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stept up. [1873 LD. HOUGHTON *Monogr.* 280 Sydney Smith .. often spoke with much bitterness of the growing belief in three Sexes of Humanity—Men, Women, and Clergymen.]

e. *The sex: the female sex.* [F. *le sexe.*] Now *rare*.

1589 PUTTENHAM *Eng. Poesie* III. xix. (Arb.) 235 As he that had tolde a long tale before certaine noble women, of a matter somewhat in honour touching the Sex. 1608 D. T[UVILL] *Ess. Pol. & Mor.* 101 b, Not yet weighing with himselfe, the weaknesse and imbecillitie of the sex. 1631 MASSINGER *Emperor East* I. ii, I am called The Squire of Dames, or Servant of the Sex. 1697 VANBRUGH *Prov. Wife* II. ii, He has a strange penchant to grow fond of me, in spite of his aversion to the sex. 1760-2 GOLDSM. *Cit. W.* xcix, The men of Asia behave with more deference to the sex than you seem to imagine. 1792 A. YOUNG *Trav. France* I. 220 The sex of Venice are undoubtedly of a distinguished beauty. 1823 BYRON *Juan* XIII. lxxix, We give the sex the *pas*. 1863 R. F. BURTON *W. Africa* I. 22 Going ‘up stairs’, as the sex says, at 5 a.m. on the day after arrival, I cast the first glance at Funchal.

f. Without *the*, in predicative quasi-adj. use=feminine. *rare*.

a 1700 DRYDEN *Cymon & Iph.* 368 She hugg’d th’ Offender, and forgave th’ Offence, Sex to the last!

2. Quality in respect of being male or female.

a. With regard to persons or animals.

1526 *Pilgr. Perf.* (W. de. W. 1531) 282 b, Ye bee, whiche neuer gendreth with ony make of his kynde, nor yet hath ony distinct sex. 1577 T. KENDALL *Flowers of Epigr.* 71 b, If by corps supposd may be her seex, then sure a virgin she. 1616 T. SCOTT *Philomythie* I. (ed. 2) A 3 Euen as Hares change shape and sex, some say Once euery yeare. 1658 SIR T. BROWNE *Hydriot.* iii. 18 A critical view of bones makes a good distinction of sexes. **a** 1665 DIGBY *Chym. Secrets* (1682) II. 225 Persons of all Ages and Sexes. 1667 MILTON *P. L.* I. 424 For Spirits when they please can either Sex assume, or both. 1710-11 SWIFT *Jrnl. to Stella* 7 Mar., I find I was mistaken in the sex, ‘tis a boy. 1757 SMOLLETT *Reprisal* IV. v, As for me, my sex protects me. 1825 SCOTT *Betrothed* xiii, I am but a poor and neglected woman, feeble both from sex and age. 1841 ELPHINSTONE *Hist. India* I. 349 When persons of different sexes walk together, the woman always follows the man. 1882 TENSION-WOODS *Fish N. S. Wales* 116 Oysters are of distinct sexes.

b. with regard to plants (see FEMALE *a.* 2, MALE *a.* 2).

1567 MAPLET *Gr. Forest* 28 Some seeme to haue both sexes and kindes: as the Oke, the Lawrell and such others. 1631 WIDDOWES *Nat. Philos.* (ed. 2) 49 There be sexes of hearbes .. namely, the Male or Female. 1720 P. BLAIR *Bot. Ess.* iv. 237 These being very evident Proofs of a necessity of two Sexes in Plants as well as in Animals. 1790 SMELLIE *Philos. Nat. Hist.* I. 245 There is not a notion more generally adopted, that that vegetables have the distinction of sexes. 1848 LINDLEY *Introd. Bot.* (ed. 4) II. 80 Change of Sex under the influence of external causes.

3. The distinction between male and female in general.
In recent use often with more explicit notion: The sum of

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those differences in the structure and function of the reproductive organs on the ground of which beings are distinguished as male and female, and of the other physiological differences consequent on these; the class of phenomena with which these differences are concerned.

Organs of sex: the reproductive organs in sexed animals or plants.

a 1631 DONNE *Songs & Sonn., The Printrose* Poems 1912 I. 61 Should she Be more then woman, she would get above All thought of sexe, and think to move My heart to study her, and not to love. **a 1643** CARTWRIGHT *Siedge* III. vi, My Soul's As Male as yours; there's no Sex in the mind. **1748** MELMOTH *Fitzosborne Lett.* lxii. (1749) II. 119 There may be a kind of sex in the very soul. **1751** HARRIS *Hermes* Wks. (1841) 129 Besides number, another characteristic, visible in substances, is that of sex. **1878** GLADSTONE *Prim. Homer* 68 Athenè .. has nothing of sex except the gender, nothing of the woman except the form. **1887** K. PEARSON *Eth. Free-thought* xv. (1888) 429 What is the true type of social (moral) action in matters of sex? **1895** CRACKANTHORPE in *19th Cent.* Apr. 607 (art.) Sex in modern literature. *Ibid.* 614 The writers and readers who have strenuously refused to allow to sex its place in creative art. **1912** H. G. WELLS *Marriage* ii. §6. 72 The young need .. to be told .. all we know of three fundamental things; the first of which is God, .. and the third Sex.

¶ 4. Used, by confusion, in senses of SECT (q. v. I, 4 b, 7, and cf. I d note).

1575-85 ABP. SANDYS *Serm.* xx. 358 So are all sexes and sorts of people called vpon. **1583** MELBANCKE *Philotimus* L iij b, Whether thinkest thou better sporte & more absurd, to see an Asse play on an harpe contrary to his sex, or heare [etc.]. **1586** J. HOOKER *Hist. Irel.* 180/2 in *Holinshed*, The whole sex of the Oconhours. **1586** T. B. *La Primaud. Fr. Acad.* I. 359 O detestable furie, not to be found in most cruell beasts, which spare the blood of their sexe. **a 1704** T BROWN *Dial. Dead, Friendship* Wks. 1711 IV. 56 We have had enough of these Christians, and sure there can be no worse among the other Sex of Mankind [i. e. Jews and Turks]? **1707** ATTERBURY *Large Vind. Doctr.* 47 Much less can I imagine, why a Jewish Sex (whether of Pharisees or Saducees) should be represented, as [etc.].

5. *attrib.* and *Comb.*, as *sex-distinction*, *function*, etc.; *sex-abusing*, *transforming* adjs.; sex-cell, a reproductive cell, with either male or female function; a sperm-cell or an egg-cell.

1642 H. MORE *Song of Soul* I. III. lxxi, Mad-making waters, sex trans-forming springs. **1781** COWPER *Expost.* 415 Sin, that in old time Brought fire from heav'n, the sex-abusing crime. **1876** HARDY *Ethelberta* xxxvii, You cannot have celebrity and sex-privilege both. **1887** *Jrnl. Educ.* No. 210. 29 If this examination craze is to prevail, and the sex-abolitionists are to have their way. **1889** GEDDES & THOMSON *Evol. Sex* 91 Very commonly the sex-cells originate in the ectoderm and ripen there. **1894** H. DRUMMOND *Ascent of Man* 317 The sex-distinction slowly gathers definition. **1897** J. HUTCHINSON in *Arch. Surg.* VIII. 230 Loss of Sex Function.

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Sex (seks), *v.* [f. **SEX** *sb.*] *trans.* To determine the sex of, by anatomical examination; to label as male or female.

1884 GURNEY *Diurnal Birds Prey* 173 The specimen is not sexed, neither is the sex noted on the drawing. 1888 A. NEWTON in *Zoologist* Ser. 111. XII. 101 The .. barbarous phrase of 'collecting a specimen' and then of 'sexing' it.

Concise Oxford Dictionary of Current English 1164 (5th ed. 1964):

sex, *n.* Being male or female or hermaphrodite (*what is its ~?; ~ does not matter; without distinction of age or ~*), whence ~'LESS *a.*, ~'LESSNESS *n.*, ~'Y² *a.*, immoderately concerned with ~; males or females collectively (*all ranks & both ~es; the fair, gentle, softer, weaker, ~, & joc. the ~, women; the sterner ~, men; is the fairest of her ~*); (attrib.) arising from difference, or consciousness, of ~ (~ *antagonism, ~ instinct, ~ urge*); ~ *appeal*, attractiveness arising from difference of ~. [f. L *sexus* -ūs; partly thr. F]

Random House Dictionary of the English Language 1307 (1966):

sex (seks), *n.* 1. The fact or character of being either male or female: *persons of different sex*. 2. either of the two groups of persons exhibiting this character: *the stronger sex; the gentle sex*. 3. the sum of the structural and functional differences by which the male and female are distinguished, or the phenomena or behavior dependent on these differences. 4. the instinct or attraction drawing one sex toward another, or its manifestation in life and conduct. 5. coitus. 6. **to have sex**, *Informal*. to engage in sexual intercourse. -*v.t.* 7. to ascertain the sex of, esp. of newly hatched chicks. 8. **sex it up**, *Slang*. to neck passionately: *They were really sexing it up last night*. 9. **sex up**, *Informal*. **a.** to arouse sexually: *She certainly knows how to sex up the men*. **b.** to increase the appeal of; to make more interesting, attractive, or exciting: *We've decided to sex up the movie with some battle scenes*. [ME < L *sex(us)*, akin to *secus*, deriv. of *secre* to cut, divide; see SECTION]

American Heritage Dictionary 1187 (1969):

sex (sèks) *n.* 1. **a.** The property or quality by which organisms are classified according to their reproductive functions.

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b. Either of two divisions, designated *male* and *female*, of this classification. **2.** Males or females collectively. **3.** The condition or character of being male or female; the physiological, functional, and psychological differences that distinguish the male and the female. **4.** The sexual urge or instinct as it manifests itself in behavior. **5.** Sexual intercourse. —*tr.v.* **sexed, sexing, sexes.** To determine the sex of (young chickens). [Middle English, from Old French *sexe*, from Latin *sexus*†.]

B

Webster's Third New International Dictionary 2081 (2002):

¹**sex** \ˈseks\ *n* —ES *often attrib* [ME, fr. L *sexus*; prob. akin to L *secare* to cut—more at SAW] **1:** one of the two divisions of organic esp. human beings respectively designated male or female <a member of the opposite ~> **2:** the sum of the morphological, physiological, and behavioral peculiarities of living beings that subserves biparental reproduction with its concomitant genetic segregation and recombination which underlie most evolutionary change, that in its typical dichotomous occurrence is usu. genetically controlled and associated with special sex chromosomes, and that is typically manifested as maleness and femaleness with one or the other of these being present in most higher animals though both may occur in the same individual in many plants and some invertebrates and though no such distinction can be made in many lower forms (as some fungi, protozoans, and possibly bacteria and viruses) either because males and females are replaced by mating types or because the participants in sexual reproduction are indistinguishable—compare HETEROTHALLIC, HOMOTHALLIC; FERTILIZATION, MEIOSIS, MENDEL'S LAW; FREEMARTIN, HERMAPHRODITE, INTERSEX **3:** the sphere of interpersonal behavior esp. between male and female most directly associated with, leading up to, substituting for, or resulting from genital union <agree that the Christian's attitude toward ~ should not be considered apart from love, marriage, family—M. M. Forney> **4:** the phenomena of sexual instincts and their manifestations <with his customary combination of philosophy, insight, good will toward the world, and entertaining interest in ~—Allen Drury> <studying and assembling what

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modern scientists have discovered about ~—*Time*>; *specif*: SEXUAL INTERCOURSE <an old law imposing death for ~ outside marriage—William Empson>

²**sex** \“ vt -ED/-ING/-ES **1**: to determine the sex of (an organic being) <it is difficult to ~ the animals at a distance—E. A. Hooton>—compare AUTOSEXING **2 a**: to increase the sexual appeal or attraction of—usu. used with *up* <titles must be ~ed up to attract 56 million customers—*Time*> **b**: to arouse the sexual instincts or desires of—usu. used with *up* <watching you ~ing up that bar kitten—Oakley Hall>

Random House Webster’s Unabridged Dictionary 1754 (2d ed. 2001):

sex (seks), *n.* **1.** either the male or female division of a species, esp. as differentiated with reference to the reproductive functions. **2.** the sum of the structural and functional differences by which the male and female are distinguished, or the phenomena or behavior dependent on these differences. **3.** the instinct or attraction drawing one sex toward another, or its manifestation in life and conduct. **4.** coitus. **5.** genitalia. **6. to have sex**, to engage in sexual intercourse. – *v.t.* **7.** to ascertain the sex of, esp. of newly-hatched chicks. **8. sex up**, *Informal.* **a.** to arouse sexually: *The only intent of that show was to sex up the audience.* **b.** to increase the appeal of; to make more interesting, attractive, or exciting: *We’ve decided to sex up the movie with some battle scenes.* [1350–1400; ME < L *Sexus*, perh. akin to *secāre* to divide (see SECTION)]

American Heritage Dictionary 1605 (5th ed. 2011):

sex (seks) *n.* **1a.** Sexual activity, especially sexual intercourse: *hasn’t had sex in months.* **b.** The sexual urge or instinct as it manifests itself in behavior: *motivated by sex.* **2a.** Either of the two divisions, designated female and male, by which most organisms are classified on the basis of their reproductive organs and functions: *How do you determine the sex of a lobster?* **b.** The fact or condition of existing in these two divisions, especially the collection of characteristics that distinguish female and male: *the evolution of sex in plants; a study that takes sex into account.* See Usage Note at **gender**. **3.** Females or males considered as a group: *dormi-*

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tories that house only one sex. **4.** One’s identity as either female or male. **5.** The genitals. ❖ *tr.v.* **sexed, sex-ing, sex-es** **1.** To determine the sex of (an organism). **2.** *Slang a.* To arouse sexually. Often used with *up*. **b.** To increase the appeal or attractiveness of. Often used with *up* [Middle English < Latin *sexus*.]

C

Statutes Prohibiting Sex Discrimination

- 2 U. S. C. § 658a(2) (Congressional Budget and Fiscal Operations; Federal Mandates)
- 2 U. S. C. § 1311(a)(1) (Congressional Accountability; Extension of Rights and Protections)
- 2 U. S. C. § 1503(2) (Unfunded Mandates Reform)
- 3 U. S. C. § 411(a)(1) (Presidential Offices; Employment Discrimination)
- 5 U. S. C. § 2301(b)(2) (Merit System Principles)
- 5 U. S. C. § 2302(b)(1) (Prohibited Personnel Practices)
- 5 U. S. C. § 7103(a)(4)(A) (Labor-Management Relations; Definitions)
- 5 U. S. C. § 7116(b)(4) (Labor-Management Relations; Unfair Labor Practices)
- 5 U. S. C. § 7201(b) (Antidiscrimination Policy; Minority Recruitment Program)
- 5 U. S. C. § 7204(b) (Antidiscrimination; Other Prohibitions)
- 6 U. S. C. § 488f(b) (Secure Handling of Ammonium Nitrate; Protection From Civil Liability)
- 7 U. S. C. § 2020(c)(1) (Supplemental Nutrition Assistance Program)
- 8 U. S. C. § 1152(a)(1)(A) (Immigration; Numerical Limitations on Individual Foreign States)
- 8 U. S. C. § 1187(c)(6) (Visa Waiver Program for Certain Visitors)
- 8 U. S. C. § 1522(a)(5) (Authorization for Programs for Domestic Resettlement of and Assistance to Refugees)

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- 10 U. S. C. § 932(b)(4) (Uniform Code of Military Justice; Article 132 Retaliation)
- 10 U. S. C. § 1034(j)(3) (Protected Communications; Prohibition of Retaliatory Personnel Actions)
- 12 U. S. C. § 302 (Directors of Federal Reserve Banks; Number of Members; Classes)
- 12 U. S. C. § 1735f–5(a) (Prohibition Against Discrimination on Account of Sex in Extension of Mortgage Assistance)
- 12 U. S. C. § 1821(d)(13)(E)(iv) (Federal Deposit Insurance Corporation; Insurance Funds)
- 12 U. S. C. § 1823(d)(3)(D)(iv) (Federal Deposit Insurance Corporation; Corporation Moneys)
- 12 U. S. C. § 2277a–10c(b)(13)(E)(iv) (Farm Credit System Insurance Corporation; Corporation as Conservator or Receiver; Certain Other Powers)
- 12 U. S. C. § 3015(a)(4) (National Consumer Cooperative Bank; Eligibility of Cooperatives)
- 12 U. S. C. §§ 3106a(1)(B) and (2)(B) (Foreign Bank Participation in Domestic Markets)
- 12 U. S. C. § 4545(1) (Fair Housing)
- 12 U. S. C. § 5390(a)(9)(E)(v) (Wall Street Reform and Consumer Protection; Powers and Duties of the Corporation)
- 15 U. S. C. § 631(h) (Aid to Small Business)
- 15 U. S. C. § 633(b)(1) (Small Business Administration)
- 15 U. S. C. § 719 (Alaska Natural Gas Transportation; Civil Rights)
- 15 U. S. C. § 775 (Federal Energy Administration; Sex Discrimination; Enforcement; Other Legal Remedies)
- 15 U. S. C. § 1691(a)(1) (Equal Credit Opportunity Act)
- 15 U. S. C. § 1691d(a) (Equal Credit Opportunity Act)
- 15 U. S. C. § 3151(a) (Full Employment and Balanced Growth; Nondiscrimination)

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- 18 U. S. C. § 246 (Deprivation of Relief Benefits)
- 18 U. S. C. § 3593(f) (Special Hearing To Determine Whether a Sentence of Death Is Justified)
- 20 U. S. C. § 1011(a) (Higher Education Resources and Student Assistance; Antidiscrimination)
- 20 U. S. C. § 1011f(h)(5)(D) (Disclosures of Foreign Gifts)
- 20 U. S. C. § 1066c(d) (Historically Black College and University Capital Financing; Limitations on Federal Insurance Bonds Issued by Designated Bonding Authority)
- 20 U. S. C. § 1071(a)(2) (Federal Family Education Loan Program)
- 20 U. S. C. § 1078(c)(2)(F) (Federal Payments To Reduce Student Interest Costs)
- 20 U. S. C. § 1087–1(e) (Federal Family Education Loan Program; Special Allowances)
- 20 U. S. C. § 1087–2(e) (Student Loan Marketing Association)
- 20 U. S. C. § 1087–4 (Discrimination in Secondary Markets Prohibited)
- 20 U. S. C. § 1087tt(c) (Discretion of Student Financial Aid Administrators)
- 20 U. S. C. § 1231e(b)(2) (Education Programs; Use of Funds Withheld)
- 20 U. S. C. § 1681 (Title IX of the Education Amendments of 1972)
- 20 U. S. C. § 1701(a)(1) (Equal Educational Opportunities; Congressional Declaration of Policy)
- 20 U. S. C. § 1702(a)(1) (Equal Educational Opportunities; Congressional Findings)
- 20 U. S. C. § 1703 (Denial of Equal Educational Opportunity Prohibited)
- 20 U. S. C. § 1705 (Assignment on Neighborhood Basis Not a Denial of Equal Educational Opportunity)

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- 20 U. S. C. § 1715 (District Lines)
- 20 U. S. C. § 1720 (Equal Educational Opportunities; Definitions)
- 20 U. S. C. § 1756 (Remedies With Respect to School District Lines)
- 20 U. S. C. § 2396 (Career and Technical Education; Federal Laws Guaranteeing Civil Rights)
- 20 U. S. C. § 3401(2) (Department of Education; Congressional Findings)
- 20 U. S. C. § 7231d(b)(2)(C) (Magnet Schools Assistance; Applications and Requirements)
- 20 U. S. C. § 7914 (Strengthening and Improvement of Elementary and Secondary Schools; Civil Rights)
- 22 U. S. C. § 262p–4n (Foreign Relations and Intercourse; Equal Employment Opportunities)
- 22 U. S. C. § 2304(a)(1) (Human Rights and Security Assistance)
- 22 U. S. C. § 2314(g) (Furnishing of Defense Articles or Related Training or Other Defense Service on Grant Basis)
- 22 U. S. C. § 2426 (Discrimination Against United States Personnel)
- 22 U. S. C. § 2504(a) (Peace Corps Volunteers)
- 22 U. S. C. § 2661a (Foreign Contracts or Arrangements; Discrimination)
- 22 U. S. C. § 2755 (Discrimination Prohibited if Based on Race, Religion, National Origin, or Sex)
- 22 U. S. C. § 3901(b)(2) (Foreign Service; Congressional Findings and Objectives)
- 22 U. S. C. § 3905(b)(1) (Foreign Service; Personnel Actions)
- 22 U. S. C. § 4102(11)(A) (Foreign Service; Definitions)
- 22 U. S. C. § 4115(b)(4) (Foreign Service; Unfair Labor Practices)

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- 22 U. S. C. § 6401(a)(3) (International Religious Freedom; Findings; Policy)
- 22 U. S. C. § 8303(c)(2) (Office of Volunteers for Prosperity)
- 23 U. S. C. § 140(a) (Federal-Aid Highways; Nondiscrimination)
- 23 U. S. C. § 324 (Highways; Prohibition of Discrimination on the Basis of Sex)
- 25 U. S. C. § 4223(d)(2) (Housing Assistance for Native Hawaiians)
- 26 U. S. C. § 7471(a)(6)(A) (Tax Court; Employees)
- 28 U. S. C. § 994(d) (Duties of the United States Sentencing Commission)
- 28 U. S. C. § 1862 (Trial by Jury; Discrimination Prohibited)
- 28 U. S. C. § 1867(e) (Trial by Jury; Challenging Compliance With Selection Procedures)
- 29 U. S. C. § 206(d)(1) (Equal Pay Act of 1963)
- 29 U. S. C. §§ 2601(a)(6) and (b)(4) (Family and Medical Leave; Findings and Purposes)
- 29 U. S. C. § 2651(a) (Family and Medical Leave; Effect on Other Laws)
- 29 U. S. C. § 3248 (Workforce Development Opportunities; Nondiscrimination)
- 30 U. S. C. § 1222(c) (Research Funds to Institutes)
- 31 U. S. C. § 732(f) (Government Accountability Office; Personnel Management System)
- 31 U. S. C. § 6711 (Federal Payments; Prohibited Discrimination)
- 31 U. S. C. § 6720(a)(8) (Federal Payments; Definitions, Application, and Administration)
- 34 U. S. C. § 10228(c) (Prohibition of Federal Control Over State and Local Criminal Justice Agencies; Prohibition of Discrimination)

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- 34 U.S.C. § 11133(a)(16) (Juvenile Justice and Delinquency Prevention; State Plans)
- 34 U.S.C. § 12161(g) (Community Schools Youth Services and Supervision Grant Program)
- 34 U.S.C. § 12361 (Violent Crime Control and Law Enforcement; Civil Rights for Women)
- 34 U.S.C. § 20110(e) (Crime Victims Fund; Administration Provisions)
- 34 U.S.C. § 50104(a) (Emergency Federal Law Enforcement Assistance)
- 36 U.S.C. § 20204(b) (Air Force Sergeants Association; Membership)
- 36 U.S.C. § 20205(c) (Air Force Sergeants Association; Governing Body)
- 36 U.S.C. § 21003(a)(4) (American GI Forum of the United States; Purposes)
- 36 U.S.C. § 21004(b) (American GI Forum of the United States; Membership)
- 36 U.S.C. § 21005(c) (American GI Forum of the United States; Governing Body)
- 36 U.S.C. § 21704A (The American Legion)
- 36 U.S.C. § 22703(c) (Amvets; Membership)
- 36 U.S.C. § 22704(d) (Amvets; Governing Body)
- 36 U.S.C. § 60104(b) (82nd Airborne Division Association, Incorporated; Membership)
- 36 U.S.C. § 60105(c) (82nd Airborne Division Association, Incorporated; Governing Body)
- 36 U.S.C. § 70104(b) (Fleet Reserve Association; Membership)
- 36 U.S.C. § 70105(c) (Fleet Reserve Association; Governing Body)
- 36 U.S.C. § 140704(b) (Military Order of the World Wars; Membership)

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- 36 U. S. C. § 140705(c) (Military Order of the World Wars; Governing Body)
- 36 U. S. C. § 154704(b) (Non Commissioned Officers Association of the United States of America, Incorporated; Membership)
- 36 U. S. C. § 154705(c) (Non Commissioned Officers Association of the United States of America, Incorporated; Governing Body)
- 36 U. S. C. § 190304(b) (Retired Enlisted Association, Incorporated; Membership)
- 36 U. S. C. § 190305(c) (Retired Enlisted Association, Incorporated; Governing Body)
- 36 U. S. C. § 220522(a)(8) and (9) (United States Olympic Committee; Eligibility Requirements)
- 36 U. S. C. § 230504(b) (Vietnam Veterans of America, Inc.; Membership)
- 36 U. S. C. § 230505(c) (Vietnam Veterans of America, Inc.; Governing Body)
- 40 U. S. C. § 122(a) (Federal Property and Administrative Services; Prohibition on Sex Discrimination)
- 40 U. S. C. § 14702 (Appalachian Regional Development; Nondiscrimination)
- 42 U. S. C. § 213(f) (Military Benefits)
- 42 U. S. C. § 290cc–33(a) (Projects for Assistance in Transition From Homelessness)
- 42 U. S. C. § 290ff–1(e)(2)(C) (Children With Serious Emotional Disturbances; Requirements With Respect to Carrying Out Purpose of Grants)
- 42 U. S. C. § 295m (Public Health Service; Prohibition Against Discrimination on Basis of Sex)
- 42 U. S. C. § 296g (Public Health Service; Prohibition Against Discrimination by Schools on Basis of Sex)
- 42 U. S. C. § 300w–7(a)(2) (Preventive Health and Health Services Block Grants; Nondiscrimination Provisions)

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- 42 U. S. C. § 300x–57(a)(2) (Block Grants Regarding Mental Health and Substance Abuse; Nondiscrimination)
- 42 U. S. C. § 603(a)(5)(I)(iii) (Block Grants to States for Temporary Assistance for Needy Families)
- 42 U. S. C. § 708(a)(2) (Maternal and Child Health Services Block Grant; Nondiscrimination Provisions)
- 42 U. S. C. § 1975a(a) (Duties of Civil Rights Commission)
- 42 U. S. C. § 2000c(b) (Civil Rights; Public Education; Definitions)
- 42 U. S. C. § 2000c–6(a)(2) (Civil Rights; Public Education; Civil Actions by the Attorney General)
- 42 U. S. C. § 2000e–2 (Equal Employment Opportunities; Unlawful Employment Practices)
- 42 U. S. C. § 2000e–3(b) (Equal Employment Opportunities; Other Unlawful Employment Practices)
- 42 U. S. C. § 2000e–16(a) (Employment by Federal Government)
- 42 U. S. C. § 2000e–16a(b) (Government Employee Rights Act of 1991)
- 42 U. S. C. § 2000e–16b(a)(1) (Discriminatory Practices Prohibited)
- 42 U. S. C. § 2000h–2 (Intervention by Attorney General; Denial of Equal Protection on Account of Race, Color, Religion, Sex or National Origin)
- 42 U. S. C. § 3123 (Discrimination on Basis of Sex Prohibited in Federally Assisted Programs)
- 42 U. S. C. § 3604 (Fair Housing Act; Discrimination in the Sale or Rental of Housing and Other Prohibited Practices)
- 42 U. S. C. § 3605 (Fair Housing Act; Discrimination in Residential Real Estate-Related Transactions)
- 42 U. S. C. § 3606 (Fair Housing Act; Discrimination in the Provision of Brokerage Services)

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- 42 U. S. C. § 3631 (Fair Housing Act; Violations; Penalties)
- 42 U. S. C. § 4701 (Intergovernmental Personnel Program; Congressional Findings and Declaration of Policy)
- 42 U. S. C. § 5057(a)(1) (Domestic Volunteer Services; Nondiscrimination Provisions)
- 42 U. S. C. § 5151(a) (Nondiscrimination in Disaster Assistance)
- 42 U. S. C. § 5309(a) (Community Development; Nondiscrimination in Programs and Activities)
- 42 U. S. C. § 5891 (Development of Energy Sources; Sex Discrimination Prohibited)
- 42 U. S. C. § 6709 (Public Works Employment; Sex Discrimination; Prohibition; Enforcement)
- 42 U. S. C. § 6727(a)(1) (Public Works Employment; Nondiscrimination)
- 42 U. S. C. § 6870(a) (Weatherization Assistance for Low-Income Persons)
- 42 U. S. C. § 8625(a) (Low-Income Home Energy Assistance; Nondiscrimination Provisions)
- 42 U. S. C. § 9821 (Community Economic Development; Nondiscrimination Provisions)
- 42 U. S. C. § 9849 (Head Start Programs; Nondiscrimination Provisions)
- 42 U. S. C. § 9918(c)(1) (Community Services Block Grant Program; Limitations on Use of Funds)
- 42 U. S. C. § 10406(c)(2)(B)(i) (Family Violence Prevention and Services; Formula Grants to States)
- 42 U. S. C. § 11504(b) (Enterprise Zone Development; Waiver of Modification of Housing and Community Development Rules in Enterprise Zones)
- 42 U. S. C. § 12635(a)(1) (National and Community Service State Grant Program; Nondiscrimination)